

Disposition

The Court finds and orders as follows:

1. The matter is moot and the hearing is **VACATED**.

4. 9:00 AM CASE NUMBER: C24-02209

CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AGAINST THE 2ND AMENDED COMPLAINT OF PATRICK MORRISSEY AND ALEXANDRA MORRISSEY
FILED BY: QUALITY LOAN SERVICE CORPORATION**

TENTATIVE RULING:

Before the Court is Defendant Quality Loan Service Corporation (“Defendant” or “Quality”)’s motion for judgment on the pleadings (“MJOP”). The MJOP relates to Plaintiff Patrick Morrissey and Alexandra Morrissey (collectively, “Plaintiffs”)’s Second Amended Complaint (“SAC”) for (1) private nuisance, (2) damages for public nuisance, (3) injunctive relief for abatement of nuisance, (4) damages for trespass, (5) diversion of surface waters, (6) diversion of surface water to groundwater, (7) negligence, and (8) declaratory relief. As best the Court can determine, only the declaratory relief cause of action is alleged against Quality.

Defendant moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 on the grounds that Quality is not subject to liability due to the litigation privilege. Additionally, Defendant moves against Plaintiffs’ eighth cause of action for declaratory relief on the grounds that there is not a present and actual controversy regarding Defendant’s involvement with the Subject Property.

This is Defendant Quality’s first challenge to Plaintiffs’ claims.

For the following reasons, the MJOP is **GRANTED**, with leave to amend.

Judicial Notice

Defendant requests judicial notice of several documents from the Contra Costa County Recorder’s Office. The unopposed Request is **GRANTED**. (Evid. Code §§ 452, 453.)

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil &

Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Brief Factual and Procedural Background

This case arises out of a landslide that occurred on and near the homes owned by Plaintiffs and Defendant Homeowners on or about January 15 through 19, 2023. (SAC at ¶ 15.) The SAC further alleges that Defendant United Wholesale Mortgage (“UWM”) and Does 101-300 “took possession of the property and/or were notified that Plaintiffs had abandoned their property.” (*Id.* at ¶ 80.) Plaintiffs allege that they are “unable to make any of the repairs sought in this action without permission to access the locked gate.” (*Id.*) The further allege that Defendants have “wrongfully instituted foreclosure proceedings without proper legal or factual basis by wrongfully claiming that Plaintiffs have abandoned their property.” (*Id.* at ¶ 81.)

The Supplemental Complaint alleges generally that Defendant United Wholesale Mortgage, Defendant Federal National Mortgage Association, and Defendant Cenlar FSB have “exercised dominion, custody, and control over said Property by, among other things, restricting Plaintiffs’ access, controlling decision-making regarding remediation and safety, and communicating with third parties in a manner consistent with ownership-level control.” (Supp. Compl. at ¶ 3.) It seeks additional declaratory relief “that UWM and Does 101-300 are legally responsible for damages caused during [their] exercise of dominion and control over the property, including without limitation damages resulting from UWM’s delay, obstruction, or refusal to permit necessary repairs.” (*Id.* at ¶ 11(F).)

Plaintiffs filed the Second Amended Complaint on August 26, 2025.

Plaintiffs named Quality as a Doe 103 on September 3, 2025. Quality answered on January 16, 2026 and filed their motion for judgment on the pleadings the same day.

Plaintiffs filed their first Supplemental Complaint on March 2, 2026.

Analysis

As a threshold issue, Plaintiffs argue that the MJOP is moot because of their First Supplemental Complaint. That is incorrect. The purpose of a supplemental complaint is to “alleg[e] facts material to the case occurring after the former complaint or answer.” (Code Civ. Proc. § 464(a).) “A complaint and supplemental complaint are considered as separate pleadings[.]” (*Stack v. Welder* (1935) 3 Cal.2d 71, 76.) “Primarily, a supplemental complaint deals with matters occurring *after* commencement of the action and it only sets up matters consistent with the original complaint. A supplemental complaint is in no sense an amended complaint.” (*ITT Gilfillan, Inc. v. City of Los Angeles* (1982) 136 Cal.App.3d 581, 586-87 [emphasis original] [citations omitted].) The Plaintiffs’ First Supplemental Complaint did not supplant their Second Amended Complaint and the MJOP is not moot on that grounds.

As a consequence, the Court reaches the merits of Defendant’s demurrer argument; first, that their status as a trustee prohibits imposition of liability. (Demurrer at § II(A).)

Pursuant to Civil Code section 2924, subdivision (d)(1), the mailing, publication, and delivery of foreclosure notices, including notices of default and sale, are privileged communications. (Civ. Code, § 2924, subd. (d)(1); see *Schep v. Capital One, N.A.* (2017) 12 Cal.App.5th 1331, 1336.) California courts have determined that this is a qualified privilege held by trustees. (*Kachlon v. Markowitz* (2008) 168 Cal.App.4th 316, 333.) In *Kachlon*, the court held that the privilege applicable to section 2924 is not the absolute litigation privilege, but rather the qualified common interest privilege. (*Id.* at 334-344 (“Having concluded that section 2924 makes the common interest privilege (§ 47, subd. (c)(1)) applicable to statutory, nonjudicial foreclosure procedures, we now determine whether the

trial court, based on that privilege, properly granted a directed verdict for Best Alliance on the Markowitzes' slander of title claim"); cf. *Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 293 ("Given that slander of title is a tort claim, it is not surprising that a slander of title claim has been held to be subject to a litigation privilege defense. [Citations.]")

When a complaint reveals a privilege, the plaintiff must plead facts establishing malice. "(A)ctual facts must be alleged, unless they are apparent from the statement itself." (*Tschirky v. Sup. Ct.* (1981) 124 Cal.App.3d 534, 538-539.) The "mailing, publication, and delivery of notices" required as part of the nonjudicial foreclosure process are privileged. (Civ. Code § 2924, subd. (d)(1).) Therefore, a plaintiff must also allege that the recording was done with malice, "motivated by hatred or ill will" or without reasonable grounds for belief in the truth of the publication..." (See *Kachlon, supra*, 168 Cal.App.4th at 336.) Plaintiffs fail to meet this pleading requirement.

Although Quality argues that it "was named as a Doe Defendant solely for actions conducted in its capacity as Trustee under the Deed of Trust" (Demurrer at 4:6-7), precisely because Quality was added as a Doe Defendant, there are no separate specific substantive allegations regarding its conduct beyond boilerplate. As it stands, the Court concludes that Plaintiffs' cause of action is not sufficiently plead against Quality because there are no individual specific substantive allegations regarding Quality's conduct that would establish malice on its part. As a consequence, the MJOP is **GRANTED**.

5. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO ALEX SALES SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

Claimants Alex Sales Sales, Hirene Sales and Frankli Estuardo Sales Sales, by and through their duly appointed guardian ad litem herein, Norberto Emiliano Sales Sales ("Petitioner") filed three separate petitions for approval of compromise of claim on or about January 6, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on May 18, 2026.

Analysis

The Minor's Compromise is unopposed.^[FN1] The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is **APPROVED**.
2. The proposed forms of order [Order Approving Compromise of Claim (MC-351)] lodged with the moving papers reflect the prior department assignment. Petitioner to submit revised forms of order with Department 34's information and the updated hearing information.

[FN1]: Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER